

GINSBURG, J., dissenting

are challenged in this case. Plaintiffs target the rogue actions of a rank-and-file law enforcement officer acting in violation of rules controlling his office. See 8 CFR § 287.8(a)(2)(ii) (2019) (limiting use of deadly force). The situation here presented resembles cases *Abbasi* distinguished—cases involving “individual instances of . . . law enforcement overreach.” 582 U. S., at 144.

The Court nevertheless asserts that the instant suit has a “potential effect on foreign relations” because it invites courts “to arbitrate between” the United States and Mexico. *Ante*, at 103, 106. Plaintiffs, however, have brought a civil damages action, no different from one a federal court would entertain had the fatal shot hit Hernández before he reached the Mexican side of the border. True, cross-border shootings spark bilateral discussion, but so too does a range of smuggling and other border-related issues that courts routinely address “concurrently with whatever diplomacy may also be addressing them.” *Rodriguez v. Swartz*, 899 F. 3d 719, 747 (CA9 2018). The Government has identified no deleterious effect on diplomatic negotiations in any case after the Ninth Circuit held that the mother of a boy killed in a cross-border shooting could institute a *Bivens* action. See 899 F. 3d, at 734.

Moreover, the Court, in this case, cannot escape a “potential effect on foreign relations,” *ante*, at 103, by declining to recognize a *Bivens* action. As the Mexican Government alerted the Court: “[R]efus[al] to consider [Hernández’s] parents’ claim on the merits . . . is what has the potential to negatively affect international relations.” Brief for Government of United Mexican States as *Amicus Curiae* 12.

Notably, recognizing a *Bivens* suit here honors our Nation’s international commitments. Article 9(5) of the International Covenant on Civil and Political Rights (ICCPR), Dec. 19, 1966, S. Treaty Doc. No. 95–20, 999 U. N. T. S. 176, provides that “[a]nyone who has been the victim of unlawful arrest or detention shall have an enforceable right to com-